

2014 SCC OnLine All 9290

(BEFORE KRISHNA MURARI AND ASHWANI KUMAR MISHRA, JJ.)

Mukesh Singh Chaturvedi Petitioner

v.

State of U.P. & 2 Others Respondents

Counsel for Petitioner:- Sanjay Mishra

Counsel for Respondent:- C.S.C., Baleshwar Chaturvedi

Writ - C No. 33847 of 2014

Decided on July 3, 2014

Hon'ble Krishna Murari, J.

Hon'ble Ashwani Kumar Mishra, J.

We have heard learned counsel for the petitioner and Sri. Baleshwar Chaturvedi representing the respondents no. 2 & 3.

The petitioner has approached this Court seeking a writ of certiorari to quash the bill dated 20.06.2014 amounting to Rs. 5,21,091/- for consumption of electrical energy. It is pleaded that bill dated 20-05-2014 was challenged by the petitioner by filing writ petition no. 30729 of 2014, which was disposed of vide order dated 29-05-2014 providing that the petitioner, in case so advised, may avail his remedy under clause 6.5 of the Electricity Supply Code, 2005 (in short the 'Code').

Learned counsel for the petitioner contends that in pursuance of the aforesaid order, an objection dated 11-06-2014 was filed before the authority but without deciding the same, subsequent bill, challenged in this petition, was raised and thereafter, electricity connection has been disconnected.

The copy of the objection dated 11-06-2014 has been filed as annexure -7 to this petition. A perusal of the same goes to show that it does not conform with clause 6.5 of the Code inasmuch as no details of any amount deposited or objection with respect to the bill have been mentioned therein. Thus the same cannot be termed to be an objection under clause 6.5 of the Code and the authority cannot be blamed for not having decided the same.

At this stage, learned counsel for the petitioner states that the petitioner is ready and willing to deposit the entire amount in instalments without disputing the correctness of the bill.

Sri. Baleshwar Chaturvedi, learned counsel for respondents no. 2 & 3 has no objection.

Considering the facts and circumstances and with the consent of the learned counsel for the parties, writ petition is being finally disposed of by making following directions:

- (i) Petitioner shall deposit half of the outstanding arrears standing against him within a period of one month from today. Electricity connection of the petitioner shall be restored within 24 hours of deposit of first instalment.
- (ii) The balance amount shall be deposited within a further period one month.
- (iii) The petitioner shall also go on depositing the regular monthly bill as and when raised.
- (iv) In case of default in complying the aforesaid conditions, the respondents shall be at liberty to proceed against the petitioner in accordance with law.

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